

**CHAPTER xxxvii.**

An Act to confirm certain Provisional Orders made by the Board of Trade under the General Pier and Harbour Act 1861 relating to Ryde and Wicklow.

A.D. 1916.

[3rd August 1916.]

WHEREAS a Provisional Order made by the Board of Trade under the General Pier and Harbour Act 1861 is not of any validity or force whatever until the confirmation thereof by Act of Parliament:

24 & 25 Vict.
c. 45.

And whereas it is expedient that the several Provisional Orders made by the Board of Trade under the said Act and set out in the schedule to this Act be confirmed by Act of Parliament:

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows:—

1. The several Orders as amended and set out in the schedule to this Act shall be and the same are hereby confirmed and all the provisions thereof in manner and form as they are set out in the said schedule shall from and after the passing of this Act have full validity and force.

Confirmation
of Orders in
schedule.

2.—(1) The Undertakers named in the Wicklow Harbour Order hereby confirmed shall not under the powers of that Order purchase or acquire any house or houses which on the fifteenth day of December last were occupied either wholly or partly by thirty or more persons belonging to the working class as tenants or lodgers or except with the consent of the Local Government Board for Ireland any house or houses which were not so

Restriction
of power to
take houses
of working
class under
Wicklow
Harbour
Order.

A.D. 1916. occupied on the said fifteenth day of December but have been or shall be subsequently so occupied.

(2) If the said undertakers acquire or appropriate any house or houses for the purposes of the said Order in contravention of the foregoing provisions they shall be liable to a penalty of five hundred pounds in respect of every such house which penalty shall be recoverable by the Local Government Board of Ireland by action in the High Court in Ireland and shall be carried to and form part of the Consolidated Fund of the United Kingdom Provided that the Court may if it think fit reduce such penalty.

(3) For the purposes of this Act the expression "house" means any house or part of a house occupied as a separate dwelling and the expression "working class" means mechanics artisans labourers and others not working for wages but working at some trade or handicraft without employing others except members of their own family and persons other than domestic servants whose income in any case does not exceed an average of thirty shillings a week and the families of any such persons who may be residing with them.

Short title.

3. This Act may be cited as the Pier and Harbour Orders Confirmation Act 1916.

The SCHEDULE of Orders.

1 RYDE.—Transfer of Victoria Pier to Corporation &c.

2 WICKLOW.—Transfer of certain works to Urban District Council &c

RYDE CORPORATION (VICTORIA PIER).

A.D. 1916.

Order for the transfer of the Victoria Pier at Ryde from the Ryde Pier Company to the Ryde Corporation for conferring powers on the Corporation with reference to the holding maintenance management and improvement of the said Pier and of the Town Quay to authorise the Corporation to borrow money and for other purposes.

Ryde.

WHEREAS by the Isle of Wight Ferry Act 1856 the Isle of Wight Ferry Company was incorporated and authorised to make and maintain a landing-place approach and other works at Ryde and in pursuance thereof the pier now known as the Victoria Pier was constructed and by the Isle of Wight Ferry Act 1864 further powers were conferred upon the said company :

And whereas by the Ryde Pier Tramways Act 1865 the undertaking of the said Ferry Company including the Victoria Pier was transferred to the Ryde Pier Company (herein-after referred to as "the company") :

And whereas of recent years the said pier has been used exclusively for the purposes of sea-bathing but the superstructure thereof has become dilapidated and is now closed to the public and the company had determined upon the abandonment and removal of the said pier :

And whereas the facilities for sea-bathing and the loading and unloading of goods into and from vessels at Ryde are inadequate to meet the requirements of the town and district and the company have agreed with the mayor aldermen and burgesses of the borough of Ryde (herein-after referred to as "the Corporation") for the transfer to them of the company's estate and interest in the said pier and certain of the lands held in connexion therewith :

And whereas it is expedient that the said pier should be transferred to and vested in the Corporation and that they should be authorised to adapt and maintain the same for the purposes of sea-bathing and the loading and unloading of goods into and from vessels as provided by this Order :

And whereas the Corporation are the owners of the town quay at Ryde and it is expedient that they should be empowered to dredge an approach thereto and to use the said quay for the loading and unloading of goods and that the other powers in this Order contained should be conferred upon the Corporation :

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Ryde.

Now therefore the Board of Trade hereby make the following
Provisional Order:—

Preliminary.

Short title.

1. This Order may be cited as the Ryde Corporation (Victoria Pier) Order 1916.

Commence-
ment of
Order.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

3.—(1) In this Order unless the context otherwise requires—

"The borough" means the borough of Ryde;

"The borough fund" and "the borough rate" mean respectively the borough fund and the borough rate of the borough;

"The Harbours Clauses Act 1847" means the Harbours Docks and Piers Clauses Act 1847;

"The Act of 1856" means the Isle of Wight Ferry Act 1856;

"The Act of 1864" means the Isle of Wight Ferry Act 1864;

"The Act of 1865" means the Ryde Pier Tramways Act 1865;

"The pier" means the pier known as the Victoria Pier lying to the east of Ryde Pier constructed in pursuance of the powers of the Act of 1856 and transferred to and vested in the company by the Act of 1865 together with all works and conveniences now or hereafter connected therewith;

"The quay" means the town quay of the Corporation situate between the pier and the George Street Slipway in the borough together with all works and conveniences now or hereafter connected therewith;

"The pier undertaking" means and includes the pier and the quay and the undertaking transferred to the Corporation or authorised by this Order;

"The pier revenue" means the revenue of the pier undertaking;

"The date of transfer" means the first day of March one thousand nine hundred and sixteen.

(2) In the application to this Order of the Harbours Clauses Act 1847 the expressions "packet boat" or "Post Office packet" and "Post Office bag of letters" used in that Act shall mean respectively a vessel employed by or under the Post Office or the Admiralty for the conveyance under contract of postal packets as defined by the Post Office Act 1908 and a mail bag as defined by the same Act Provided that nothing in the Harbours Clauses Act 1847 or in this

Order shall extend to exempt from rates or duties any such vessel as aforesaid if she also conveys passengers or goods for hire. A.D. 1916.
Ryde.

Undertakers.

4. The Corporation shall be the undertakers for carrying this Order into execution. Undertakers.

Transfer of Pier to the Corporation.

5.—(1) From and immediately after the commencement of this Order all the estate and interest of the company in the land and land covered by water delineated on the map referred to in the section of this Order whereof the marginal note is "Limits" and thereon coloured blue together with the pier or landing stage erected on part thereof and now known as the Victoria Pier and all rights now connected therewith together with the rights which formerly belonged to the Isle of Wight Ferry Company to moor vessels to the east of the pier south of a point six hundred and fifty yards north of the southern or landward end of the pier shall be deemed to have been transferred to and to have vested in the Corporation as from the date of transfer and shall subject to the provisions of this Order be held maintained used exercised and enjoyed by the Corporation as from the date of transfer freed and discharged from all obligations and liabilities of the company in relation thereto or in connexion therewith. Provided that any powers vested in the Corporation by this subsection to construct works shall not be exercised seaward of a point five hundred and sixty-six yards north of the southern or landward end of the pier or west of the limits of this Order. Transfer of pier to Corporation and repeal of Acts.

(2) For the purpose of completing the title of the Corporation to the property and rights hereby transferred to them this Order shall be deemed to be a conveyance by the company to the Corporation as of the date of transfer.

(3) On such day after the commencement of this Order as the Corporation shall think fit (not being later than two years after the termination of the present war) the Corporation shall pay to the company the sum of one thousand pounds together with interest at the rate of five pounds per centum per annum reckoned from the date of transfer until the day of payment of the said principal sum.

(4) As from the date of transfer all rights powers privileges and authorities of the company over and in respect of or connected with the said land and land covered by water and the said pier or landing stage shall cease and determine and the company shall be thenceforth freed and discharged from all obligations and liabilities in respect thereof arising after the date of transfer.

A.D. 1916.

Ryde.

(5) The Act of 1856 the Act of 1864 and sections 5 to 10 of the Act of 1865 are hereby repealed except so much of sections 5 and 6 of the Act of 1865 and of the schedule to that Act as relates to the portion of the undertaking formerly belonging to the Isle of Wight Ferry Company which after the commencement of this Order remains vested in the company.

Saving rights
of action.

6. Subject to the provisions of this Order nothing in this Order contained shall be held to prejudice or affect any right or cause of action or suit or any remedy which immediately before the commencement of this Order the company have against any person or any person has against the company but all such rights causes suits and remedies may be enforced or prosecuted by or against the company as if this Order had not been made.

Documents
&c. to be
evidence.

7. All documents books and writings by the Act of 1856 directed or authorised to be kept and which if this Order had not been made would have been receivable in evidence shall be admitted as evidence in all courts of law and equity and elsewhere.

Acquisition of Lands.

Incorpora-
tion of Lands
Clauses Acts.

8. The Lands Clauses Acts (except section 127 of the Lands Clauses Consolidation Act 1845 and so much of those Acts as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term "special Act" in those Acts shall mean this Order.

Power to
take lands by
agreement.

9. The Corporation may for the purposes of the pier undertaking by agreement purchase or take on lease any interest in the foreshore of the borough and any additional lands which the Corporation may deem requisite or convenient not exceeding in the whole two acres but nothing in this section shall exempt the Corporation from any proceedings for nuisance caused or permitted by them on land acquired by them under the power conferred by this section Provided that the Corporation shall not under this section acquire an interest in any part of such foreshore or any land to the north or west of the limits of this Order.

Power to
take ease-
ments &c. by
agreement.

10. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and this Order grant any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in or over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid.

Limits.

A.D. 1916.

Ryde.

Limits.

11.—(1) The limits within which the Corporation shall have authority under this Order and the powers of the pier master under this Order may be exercised shall comprise the land foreshore and bed of the sea in and adjoining the parish and borough of Ryde included within the area bounded by a line drawn from the top of the slipway at the western end of the Eastern Esplanade Gardens along the line which divides the public highway from the land to the north thereof which with the sea wall on its northern side to the west of the pier forms the town quay as far as the eastern side of the George Street Slipway and thence in a northerly direction along the eastern boundary of the George Street Slipway thence in a due north-north-easterly direction to a point fifty yards west of the pier and thence proceeding in a straight line drawn parallel to the pier seawards for a distance of four hundred and seventy-two yards or thereabouts thence in a line drawn in an easterly direction at right angles to the last-mentioned line for a distance of two hundred and twenty yards or thereabouts and thence in a line drawn in a southerly direction at right angles to the last-mentioned line for a distance of six hundred and ninety-seven yards or thereabouts to the sea wall adjoining the said gardens and thence along that wall to the top of the slipway at the western end of the said gardens which limits are in this Order termed “the limits of this Order.”

(2) A map showing by a red line the limits of this Order having been signed in triplicate by an assistant secretary to the Board of Trade and one copy thereof having been deposited at the office of the Board of Trade a copy thereof shall be deposited at the office of the clerk of the peace for the county of Southampton and the other copy thereof shall be deposited at the office of the town clerk of the borough.

(3) In case of any discrepancy between the limits delineated on the said map and the limits described in subsection (1) of this section the said map shall be deemed to be correct and shall prevail.

Works and Powers.

12.—(1) The Corporation may maintain repair alter extend improve and enlarge the pier and the quay and works connected therewith respectively and may fill in solid material between and around the piles of the pier and may construct alter extend improve enlarge and maintain all necessary jetties piers quays slips walls stairs landing places approaches roads causeways gates baulks of timber wharves breastworks warehouses sheds cranes buoys lights moorings beacons lighthouses sewers drains watercourses gas and water pipes electric light and power mains and wires and other works and conveniences in connexion with the pier and the quay or the approaches thereto

Power to
maintain and
extend pier
and quay.

A.D. 1916.

Ryde.

respectively and may also from time to time lay down and maintain rails tramways sidings and turntables on and along the pier quays and other works of the Corporation Provided that the powers of this subsection shall not be exercised seaward of a point five hundred and sixty-six yards north of the southern or landward end of the pier or west of the limits of this Order.

(2) No line of rails or tramway constructed under the powers of this Order shall be used for the public conveyance of passengers.

(3) Any electric light and power mains and wires and other works constructed provided and maintained under this Order shall be so constructed used and worked as to prevent any interference with telegraphic communication by means of any telegraphic line belonging to or used by the Postmaster General.

(4) Nothing in this Order shall extend to or authorise an interference with any works of any undertakers within the meaning of the Electric Lighting Acts 1882 to 1909 to which the provisions of section 15 of the Electric Lighting Act 1882 apply except in accordance with and subject to the provisions of that section.

Works below
high-water
mark not to
be com-
menced with-
out consent
of Admiralty
and War
Department.

13. The Corporation shall not under the powers of this Order construct on the shore of the sea or of any creek bay arm of the sea or navigable river communicating therewith where and so far up the same as the tide flows and reflows any work without the previous consent of the Admiralty and the War Department to be signified in writing under the hand of the Secretary of the Admiralty and the Secretary of the War Department respectively and then only according to such plan and under such restrictions and regulations as the Admiralty and the War Department may approve of in writing under hand as last aforesaid and where any such work may have been constructed the Corporation shall not at any time alter or extend the same without obtaining previously to making any alteration or extension the like consents or approvals If any work be commenced altered extended or completed contrary to the provisions of this section the Admiralty or the War Department may abate and remove the same and restore the site thereof to its former condition at the cost and charge of the Corporation and the amount of such costs and charges shall be a debt due from the Corporation to the Crown and shall be recoverable as a Crown debt or summarily.

Survey of
works by
Admiralty.

14. If at any time the Admiralty deems it expedient to order a survey and examination of a work constructed by the Corporation under this Order on in over through or across tidal lands or tidal water or of the intended site of any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

15. If a work constructed by the Corporation on in over through or across tidal lands or a tidal water is abandoned or suffered to fall into decay the Admiralty may abate and remove the work or any part of it and restore the site thereof to its former condition at the expense of the Corporation and the amount of such expense shall be a debt due from the Corporation to the Crown and be recoverable as a Crown debt or summarily.

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*Ryde.*Abatement
of work
abandoned or
decayed.

16. Any person who wilfully obstructs the Corporation or any person acting under their authority in setting out the lines of any works authorised by this Order or who pulls up or removes any poles or stakes driven into the ground for the purpose of setting out the lines of those works or any part thereof shall for every such offence be liable to a penalty not exceeding five pounds.

Penalty for
obstructing
works.

17.—(1) The Corporation may deepen dredge scour and excavate any portion of the foreshore and bed of the sea to the extent necessary to secure a sufficient waterway and approach to the pier and quay for vessels using the same respectively.

Power to
dredge.

(2) All sand mud and materials dredged up or removed shall be the property of the Corporation who may sell or otherwise dispose of or remove or deposit the same as they think fit Provided that no sand mud stone or other material shall be laid down or deposited in any place below high-water mark outside the limits of the dockyard port of Portsmouth without the consent in writing of the Board of Trade having been first obtained or below high-water mark within the limits of the said dockyard port without the consent of the Admiralty having been first obtained.

(3) All money arising from any sale or other disposition of sand mud and other materials under this section after payment of the expenses connected therewith shall be applied in the same manner as under this Order the pier revenue is to be applied.

(4) The Corporation shall not without the previous consent in writing of the London and South Western and London Brighton and South Coast Railway Companies exercise the powers of this section beyond the limits of this Order within a distance of one hundred yards from any portion of the Ryde Pier of those companies.

18. The Corporation may from time to time provide purchase take on lease hire and use such dredgers engines lighters tools plant or other vessels machinery and apparatus as they may think necessary for effecting the purposes of this Order and may let the same on hire for such reasonable sums and upon and subject to such terms and conditions as they may think fit or may sell and dispose of the same All sums received in respect of any such letting on hire shall be

Power to
provide
dredgers &c.

A.D. 1916. deemed to form part of the pier revenue and all moneys realised
 Ryde. by any such sale shall be applied towards carrying into effect any
 of the purposes of this Order to which capital is properly applicable.

Corporation
may provide
and license
steam tugs
&c.

19.—(1) The Corporation may from time to time provide purchase contract for or hire and may maintain use and let steam tugs hoppers barges or other power for the use and accommodation of vessels loading or unloading at or otherwise making use of the pier or quay and may also from time to time license such number of steam tugs hoppers barges or other power belonging to any person for such period and on such terms and conditions as the Corporation may think fit.

(2) The Corporation may from time to time fix such rates as appear to the Corporation reasonable for or in respect of the use of any steam tugs hoppers barges or other power maintained used and let or licensed by the Corporation and such rates shall be paid by the owner agent master consignee or other person having charge of the vessel obtaining the assistance of such steam tug hopper barge or other power to the Corporation or to the person with whom the Corporation may contract or to the owner of such steam tug hopper barge or other power if licensed by the Corporation as the case may be and such rates shall be due and payable whether such steam tug hopper barge or other power shall be actually employed or not provided the assistance thereof shall have been required and shall in consequence of a requisition have been tendered by the Corporation or by the master or other person having the command of such steam tug hopper barge or other power.

Power to
construct
and maintain
baths.

20. The Corporation may erect construct alter and maintain upon the pier and upon any lands vested in or acquired by them under the powers of this Order open and covered sea water swimming and other baths bathing places and cabins together with all necessary water closets urinals lavatories and sanitary and other conveniences connected therewith and may furnish and equip the same and may make such reasonable charges as they think fit for the use thereof and admission thereto Provided that the powers of this section shall not be exercised seaward of a point five hundred and sixty-six yards north of the southern or landward end of the pier or west of the limits of this Order.

Provisions as
to use of pier.

21. The pier may be used for the purpose of loading and unloading goods into or from any ship or vessel and for storing and bonding goods and for any other business or commercial purpose and for the purpose of bathing and purposes incidental thereto Provided always that notwithstanding the provisions of section 33 of the Harbours Clauses Act 1847 the Corporation shall not use the pier or any building or structure erected under the powers of this Order or permit

the same to be used as a promenade or for pleasure or for any amusement or entertainment (other than or in connexion with bathing) or for the embarking or disembarking of passengers or persons other than members of the crew of any vessel using the pier for the purposes of the loading or unloading of goods.

A.D. 1916.

*Ryde.**Rates.*

22.—(1) Sections 25 and 26 of the Harbours Clauses Act 1847 shall not be incorporated with this Order.

Power to
levy rates.

(2) From and after the commencement of this Order the Corporation may subject and according to the provisions of this Order demand receive and recover for the use of the pier and the quay respectively and in respect of vessels boats animals fish and goods and for services described in the schedule to this Order any rates not exceeding those specified in that schedule.

23. The Corporation may confer vary or extinguish exemptions from and compound with any person with respect to the payment of rates or charges authorised by this Order but so that no preference be in any case given to any person over any other person using the pier or quay respectively under the like circumstances and that anything done under this section shall not prejudice the other provisions of this Order.

Power to
vary exemp-
tions and
compound
for rates.

24. The Corporation may (so far as the rates specified in the schedule to this Order do not extend) demand and recover such rates or other consideration as they think reasonable for the use of any sheds warehouses buildings weighing machines mooring posts cranes buoys works and conveniences belonging to or provided by the Corporation or in respect of any services rendered by them in connexion with the pier undertaking.

Rates for
sheds ware-
houses &c.

25. Fishing vessels belonging to countries with which for the time being treaties exist exempting from duties and port charges those vessels when forced by stress of weather to seek shelter in the ports or on the coast of the United Kingdom shall when forced by stress of weather to make use of the pier or quay and not breaking bulk while making use thereof be exempt from rates leviable under this Order.

Certain fish-
ing vessels
under stress
of weather
exempt from
rates.

26. All persons going to or returning from any lifeboat or using any apparatus for saving life and being persons either belonging to the crew of the lifeboat or to the coastguard or being persons for the time being actually employed in saving life or in exercising or using the lifeboat or the apparatus for saving life and also all persons brought ashore from any vessel in distress shall at all times have free ingress

Exemption
of lifeboat
crews.

A.D. 1916. passage and egress to along and from the pier and quay without
payment.
Ryde.

Revision of
rates.

27. The Corporation shall adjust the rates receivable by them under this Order so that the pier revenue may always be so far as practicable sufficient and not more than sufficient for the purposes of the pier undertaking and if at any time the clear annual income derived from such undertaking on the average of the then three last preceding years after payment of all expenses and outgoings shall exceed the amount sufficient to answer the purposes of this Order the Board of Trade may if in their discretion they think fit reduce such rates to such amounts as will be sufficient to provide the amount aforesaid with power to the Board of Trade at any time to raise them again to any amount not exceeding the rates specified in the schedule to this Order.

Powers of Leasing.

Power to
lease under-
taking or
rates.

28.—(1) The Corporation may with the previous consent in writing of and upon such terms conditions and restrictions and for such period as may be sanctioned by the Board of Trade lease to any company corporation or person the whole or part of (a) the pier undertaking or (b) the rates and other charges authorised to be taken by this Order.

(2) As from the date of any lease made under the last preceding subsection the lessee during the continuance of and to the extent provided in his lease shall have and may exercise all or any of the powers conferred upon the Corporation by this Order which the Corporation have or might exercise under this Order and shall be subject to all the liabilities and obligations to which the Corporation are subject and shall perform all the duties of the Corporation under this Order.

(3) No lease made under subsection (1) of this section shall be assignable without the previous consent in writing of the Board of Trade.

(4) The Corporation shall within one month after the date of any lease made under this section deposit a certified copy thereof with the Board of Trade and shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this subsection.

(5) No lease made under this section shall be made in consideration or part consideration of any fine premium or other capital sum.

(6) Nothing in this section shall exempt the Corporation from their obligation to keep and render accounts and as from the date of any lease made under this section all the provisions of the Acts incorporated with this Order and of this Order as to the keeping

delivery and audit of accounts shall apply to and be binding upon as well the lessee as the Corporation and all moneys received by the Corporation under or in respect of any such lease shall be deemed to be moneys levied by virtue of and income received under this Order.

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Ryde.

29. The Corporation may let for hire or lease for any term not exceeding seven years any sheds warehouses or other buildings separately from any other part of the pier undertaking to any company corporation or person upon such terms pecuniary or otherwise and under such restrictions and conditions as they think fit.

Power to
lease sheds
&c.*Finance.*

30. The Corporation may and shall provide such moneys as may become necessary for the purposes of this Order or any of them and of the pier undertaking and the maintenance management and improvement thereof and the payment of expenses in connexion therewith out of the pier revenue or if that shall be insufficient out of the borough fund and borough rate or one or other of them save in so far as such moneys shall be properly payable out of moneys authorised by this Order to be borrowed.

Power to
Corporation
to provide
moneys for
purposes of
Order.

31.—(1) The Corporation may independently of any other borrowing power from time to time borrow at interest not exceeding without the consent of the Board of Trade five pounds per centum per annum—

Power to
borrow.

- (A) Such sum as may be required for the payment of the costs charges and expenses of and incidental to this Order;
- (B) The sum of one thousand pounds being the amount to be paid to the company under the provisions of this Order;
- (c) With the consent of the Board of Trade such further sum or sums as may from time to time be required for the purposes of this Order.

(2) In order to secure the repayment of moneys borrowed for the purposes mentioned in this section and the payment of interest thereon the Corporation may mortgage or charge as well the borough fund and borough rate or either of them as the pier revenue but in such manner that the borough fund and borough rate shall only be collaterally liable and so that the borough rate shall not be liable to make good in any year a deficiency exceeding the amount produced by a borough rate of threepence in the pound.

32. The power of borrowing money given by this Order shall not be restricted by any of the regulations contained in section 234 of the Public Health Act 1875 and in calculating the amount which the Corporation may borrow under that Act any sums which they may borrow under this Order shall not be reckoned.

Section 234
of Public
Health Act
not to apply.

33. All moneys borrowed by the Corporation under the powers of this Order shall be applied only to the purposes for which such moneys

Application
of money
borrowed.

A.D. 1916. are authorised to be borrowed and to which capital is properly applicable.
Ryde.

Mode of raising money.

34. The Corporation may raise all or any moneys which they are authorised to borrow under this Order by mortgage or by the issue of debentures or annuity certificates under and subject to the provisions of the Local Loans Act 1875 or partly in one way and partly in another or others. Provided that the provisions of this Order relating to sinking funds shall apply to sinking funds formed for the repayment of moneys borrowed under the Local Loans Act 1875 instead of the provisions of section 15 (Discharge of loan by sinking fund) of that Act.

Provisions of Public Health Act as to mortgages to apply.

35. Sections 236 237 and 238 of the Public Health Act 1875 shall extend and apply to all mortgages granted under this Order.

Protection of lenders from inquiry.

36. A person lending money to the Corporation under this Order shall not be concerned to inquire as to the observance by the Corporation of any of the provisions of this Order or be bound to see to the application or be answerable for any loss or non-application of the money lent or any part thereof.

Periods for repayment of money borrowed.

37. All moneys borrowed by the Corporation under the section of this Order whereof the marginal note is "Power to borrow" shall be repaid within the respective periods following (in this Order referred to as "the prescribed periods") (that is to say):—

- (A) As to the money borrowed for the purposes (A) mentioned in the said section of this Order within five years from the commencement of this Order;
- (B) As to the money borrowed for the purposes (B) mentioned in the said section of this Order within thirty years from the date of transfer;
- (C) As to the money borrowed for the purposes (C) mentioned in the said section of this Order within such period from the date of borrowing the same as the Board of Trade may prescribe.

Mode of payment of money borrowed.

38. The Corporation shall pay off all moneys borrowed by them on mortgage under the powers of this Order either by equal yearly or half-yearly instalments of principal or of principal and interest combined or by means of a sinking fund or partly by one of those methods and partly by another or others of them and the payment of the first instalment shall be made within twelve months if a yearly instalment or within six months if a half-yearly instalment after the date of borrowing the sum in respect of which it is made and the first payment to the sinking fund shall be made within twelve months after the date of borrowing the sum in respect of which it is made.

39.—(1) If the Corporation determine to repay by means of a sinking fund any moneys borrowed under this Order the sinking fund shall be formed and maintained either—

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Ryde.
 Sinking fund.

- (A) by payment to the fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called a non-accumulating sinking fund; or
- (B) by payment to the fund throughout the prescribed period of such equal annual sums as with accumulations by way of compound interest at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is herein-after called an accumulating sinking fund.

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees are by law for the time being authorised to invest trust moneys or in mortgages bonds debentures debenture stock stock or other securities (not being annuity certificates or securities payable to bearer) duly issued by any local authority as defined by section 34 of the Local Loans Act 1875 but exclusive in every case of the securities of the Corporation and the Corporation shall be at liberty from time to time to vary and transpose the investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Corporation towards the equal annual payments to the fund.

(4) The Corporation may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of an accumulating sinking fund the Corporation shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by the sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any deficiency shall be made good by the Corporation.

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(6) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the equal annual payments to the fund are based any such excess may be applied towards such annual payments.

(7) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Corporation in addition to the payments provided for by this Order.

(8) If it appears to the Corporation at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Corporation to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose Provided that if it appears to the Local Government Board that any such increase is necessary the Corporation shall increase the payments to such extent as that Board may direct.

(9) If the Corporation desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(10) If the amount in any sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Corporation may reduce the payments to be made to the sinking fund either temporarily or permanently to such an extent as that Board approve.

(11) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be sufficient without any further payments thereto to repay the loan in respect of which it is formed within the prescribed period the Corporation may with the consent of that Board discontinue the equal annual payments to the sinking fund until that Board otherwise direct.

(12) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Corporation with the consent of the Local Government Board may determine.

Annual
return to

40. The town clerk of the borough shall within twenty-one days after the thirty-first day of March in each year during which any

sum is required to be paid as an instalment or to a sinking fund in pursuance of the provisions of this Order or in respect of any moneys raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and (if required by that Board) verified by statutory declaration of the said town clerk showing the amounts which have been paid as instalments or paid to or invested or applied for the purposes of the sinking fund during the year preceding the making of such return and the description of the securities upon which any investment has been made and also showing the purposes to which any portion of the money invested for the sinking fund and the interest thereof have been applied during the same period and the total amount remaining invested at the end of the year and in the event of any wilful default in making such return the Corporation shall for each such offence be liable to a penalty not exceeding twenty pounds which shall be paid to the Local Government Board and shall be recoverable by that Board by action on behalf of the Crown in the High Court and notwithstanding the recovery of such penalty the making of the return shall be enforceable by writ of Mandamus to be obtained by that Board out of the High Court. If it appears to the Local Government Board by such return or otherwise that the Corporation have failed to pay any instalment or to pay the sum required for any sinking fund under this Order or have applied any portion of any sinking fund to any purposes other than those authorised by this Order the Local Government Board may by order direct that a sum not exceeding double the amount in respect of which such default shall have been made shall be paid or applied as in such order mentioned and such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court and the provisions of this section shall apply mutatis mutandis to appropriations and annual payments.

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Local Government Board with respect to sinking fund.

41.—(1) The Corporation shall have power—

Power to re-borrow.

- (A) to borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid; or
- (B) to borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Corporation in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the prescribed period which remains

A.D. 1916. unexpired and the provisions which are for the time being applicable
Ryde. to the original loan shall apply to the moneys borrowed under this section.

(3) The Corporation shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Corporation shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

(A) by instalments or annual payments; or

(B) by means of a sinking fund; or

(C) out of moneys derived from the sale of land; or

(D) out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Receiver.

42.—(1) Subject to the provisions of this section any mortgagee of the Corporation in respect of a mortgage under this Order may enforce the payment of arrears of interest or of principal or of principal and interest by the appointment of a receiver.

(2) The application for the appointment of a receiver shall be made to the High Court and the Court if it thinks fit may appoint a receiver on such terms as it thinks fit and may at any time discharge the receiver and otherwise exercise full jurisdiction over him:

Provided that no such application shall be entertained unless the amount of arrears due to the applicant or in the case of a joint application by two or more mortgagees to the applicants collectively be not less than five hundred pounds in the whole.

Application
of pier
revenue.

43. The Corporation shall apply the pier revenue for the purposes and in the order following and not otherwise (that is to say):—

(1) In paying the costs of and connected with the preparation and making of this Order and otherwise incurred in reference thereto except in so far as they may be provided for out of moneys borrowed by the Corporation for the purpose under this Order:

(2) In paying the expenses properly chargeable to revenue of conducting managing and maintaining the pier undertaking:

(3) In paying year by year the interest as it accrues due on money borrowed under this Order and in paying or making provision for the interest on the said sum of one thousand pounds payable to the company:

- (4) In paying the instalments as they become due in respect of any principal money borrowed under this Order and repayable by instalments and in providing in accordance with the terms of this Order a sinking fund for the discharge of any principal money so borrowed and not repayable by instalments: A.D. 1916.
Ryde.
- (5) In repaying to the borough fund all moneys and interest paid thereout for the purposes of the pier undertaking whether in respect of money borrowed or otherwise:
- (6) The surplus (if any) after providing for the purposes aforesaid shall be applied by the Corporation in the general improvement of the pier undertaking.

44. In case the pier revenue shall in any year be insufficient for the purpose of defraying the costs charges and expenses of the Corporation with respect to the pier undertaking the Corporation shall include the amount of such insufficiency in their estimate for that or the following year and defray the same out of the borough rate but in such a manner and so that the borough rate shall not be liable in any year to contribute for the purposes of the pier undertaking including the repayment of moneys borrowed under this Order or any interest thereon a sum greater than the amount produced by a borough rate of threepence in the pound. Making up
deficiencies
in pier
revenue.

45. The Corporation shall keep a separate account to be called the "Pier Account" of all receipts payments credits and liabilities on capital and revenue accounts respectively in respect of the execution by them of this Order and such account shall be subject to the same provisions as to audit and otherwise as other accounts of the Corporation. Separate
pier accounts.

46.--(1) The Corporation shall within one month after sending to the clerk of the peace the copy of their annual account in abstract send a copy of the same to the Board of Trade and section 16 of the General Pier and Harbour Act 1861 Amendment Act shall apply to and include any such account. Annual
account to
be sent to
Board of
Trade.

(2) The Corporation shall as from the expiration of that month be liable to a penalty not exceeding twenty pounds for every week or part of a week during which they refuse or neglect to comply with this section.

(3) The account shall be made up to the end of the thirty-first day of March in each year.

(4) In addition to the account to be lodged with the clerk of the peace in accordance with section 50 of the Harbours Clauses Act 1847 the Corporation shall also lodge with him a full and detailed statement showing the capital expenditure made by the Corporation during the year covered by the said account.

A.D. 1916. 47. Notwithstanding anything in this Order the Corporation shall
Ryde. not under the powers of this Order borrow any money (other than
 Restriction money required for paying the costs charges and expenses of this
 on exercise of Order as herein-after defined) during the continuance of the present
 borrowing war and twelve months thereafter unless the consent of the Treasury
 powers has been previously obtained.
 during war.

Byelaws.

Byelaws. 48.—(1) The byelaws which may from time to time be made by the
 Corporation in exercise of the power in that behalf conferred on them
 by section 83 of the Harbours Clauses Act 1847 may provide for
 imposing a penalty not exceeding forty shillings for the breach or
 non-observance of any of the byelaws.

(2) No byelaw shall come into operation until it has received the
 allowance and confirmation of the Board of Trade and that allowance
 and confirmation shall be sufficient for all purposes.

(3) Sections 84 and 85 of the Harbours Clauses Act 1847 shall
 not be incorporated with this Order.

Life-saving Apparatus.

Provision for 49.—(1) Sections 16 to 19 of the Harbours Clauses Act 1847 shall
 life-saving not be incorporated with this Order.
 apparatus.

(2) The Corporation shall whenever required by the Board of Trade
 provide at their own expense and to the satisfaction of the Board
 of Trade a site near the quay and build on that site a house or other
 proper accommodation for a lifeboat rocket apparatus and other life-
 saving apparatus.

(3) If the Corporation fail to comply with this section they shall be
 liable to a penalty not exceeding ten pounds for every month during
 which the failure continues.

Life-saving 50. The officers of the coastguard and all other persons for the
 apparatus time being actually employed in connexion with any apparatus for
 may be saving life may either permanently or temporarily without payment
 attached to attach or cause to be attached to any part of the pier and quay spars
 pier and and other apparatus for saving life and may also either in course of
 quay. using or of exercising the apparatus for saving life fire rockets over
 the pier and quay.

Lifebuoys to 51. The Corporation shall at all times keep at convenient places on
 be kept. the pier and quay and in obedience to any requirements which may be
 made by the Board of Trade lifebuoys and life lines in good order
 and fit and ready for use.

Lights.

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52.—(1) The Corporation shall within six months from the commencement of this Order exhibit in such place or places as may be required from sunset to sunrise and according to the requirements of the traffic and the season of the year such light or lights (if any) and shall take such other steps for the prevention of danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for such directions.

Ryde.
As to lights.

(2) The Corporation shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to observe or comply with any such directions.

53. In case of injury to or destruction or decay of the pier or quay or works connected therewith or any part thereof the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the Corporation of Trinity House Deptford Strond and shall apply to that corporation for directions as to the means to be taken and the Corporation shall be liable to a penalty not exceeding ten pounds for every day during which they omit so to apply or refuse or neglect to obey any direction given in reference to the means to be taken.

Provision
against
danger to
navigation.

Miscellaneous.

54. The Corporation shall have the appointment of meters and weighers within the limits of this Order.

Meters and
weighers.

55. For all the purposes of the Harbours Clauses Act 1847 this Order shall be deemed the special Act but sections 6 to 13 of that Act shall not be incorporated with this Order.

Application
of Act 10 & 11
Vict. c. 27.

56. All penalties under this Order shall be recovered and applied as penalties are recoverable and applicable under the Harbours Clauses Act 1847.

Recovery of
penalties.

57. Officers of the Board of Trade and police officers acting in the execution of their duty shall at all times have free ingress passage and egress to along and from the pier and quay without payment.

Officers
exempt from
rates.

58. Part V. of the Harbours and Passing Tolls &c. Act 1861 shall be incorporated with this Order.

Harbours and
Passing Tolls
&c. Act.

59. The Corporation shall within the limits of this Order be a local lighthouse authority within the meaning of the Merchant Shipping Act 1894.

Local light-
house autho-
rity.

60. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing

Crown rights.

A.D. 1916. *Ryde.* herein contained authorises the Corporation to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any land hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Crown
minerals.

61. Notwithstanding the provisions contained in the section of this Order of which the marginal note is "Crown rights" or in any public statute His Majesty and his lessees for their respective interests may work any minerals belonging to the Crown under or adjacent to the lands and works of the Corporation authorised to be taken or constructed by this Order but in the event of any such right being at any time intended to be exercised the provisions of the Railways Clauses Consolidation Act 1845 with respect to mines lying under or near the railway shall apply when the workings reach a point the distance of which from the nearest of such lands would not if measured horizontally exceed one-half the depth of such workings below the surface level of such lands and in the application of those provisions the term "Company" shall mean the Corporation and the term "railway" shall mean the said lands and works.

Saving
rights of
joint railway
companies.

62. Nothing in this Order contained shall prejudice or affect any rights or powers of the London and South Western and London Brighton and South Coast Railway Companies including any mooring rights or powers to maintain renew or use and authorise the use of mooring and warping buoys chains and cables belonging to the said railway companies.

Pier and quay
to be in
borough of
Ryde.

63. The pier and quay shall be deemed to be for all purposes within the parish and borough of Ryde in the county of Southampton.

Costs of
Order.

64. All costs charges and expenses of and incidental to the preparing and obtaining of this Order and otherwise incurred in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the pier revenue or out of the rate authorised by the section of this Order the marginal note whereof is "Making up deficiencies in pier revenue" or out of moneys borrowed for the purpose under this Order.

The SCHEDULE referred to in the foregoing Order.

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Ryde.

RATES ON VESSELS.

For every ship or vessel which shall load or unload at or otherwise make use of the pier or quay the several rates following (viz.) :—

Under 100 tons	-	-	2d.	per ton registered tonnage.
Of 100 tons but not exceeding	}	3d.	"	"
150 tons				
Of 150 tons but not exceeding	}	4d.	"	"
250 tons				
Upwards of 250 tons	-	-	6d.	"

RATE FOR STEAM TUGS FOR TOWING PURPOSES.

			s.	d.
To or from the pier or quay	-	-	2	0 each way.

MOORINGS.

When moorings supplied by the Corporation a charge of 1s. per day or 3s. per week may be made.

RATES ON GOODS SHIPPED UNSHIPPED OR TRANSHIPPED AT THE PIER OR QUAY.

							s.	d.
Agricultural implements per ton	-	-	-	-	-	-	1	4
Ale porter cider or vinegar per 18 gallons	-	-	-	-	-	-	0	1
Animals :—								
Horses each	-	-	-	-	-	-	0	2
Oxen and cows each	-	-	-	-	-	-	0	2
Donkeys each	-	-	-	-	-	-	0	1
Sheep per score	-	-	-	-	-	-	0	6
Lambs per score	-	-	-	-	-	-	0	3
Pigs and calves each	-	-	-	-	-	-	0	0½
Dogs each	-	-	-	-	-	-	0	1
Asphalt per ton	-	-	-	-	-	-	0	6
Bark per ton	-	-	-	-	-	-	0	8
Bed or bedstead each	-	-	-	-	-	-	0	2
Birds each	-	-	-	-	-	-	0	0½
Biscuits per ton	-	-	-	-	-	-	1	4
Ditto per cwt.	-	-	-	-	-	-	0	2
Bottles empty per gross	-	-	-	-	-	-	0	3
Boxes packages or parcels per 56 lbs.	-	-	-	-	-	-	0	1
Bricks per 1,000	-	-	-	-	-	-	0	8

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						s.	d.
Brooms hair per gross	-	-	-	-	-	1	0
Ditto heath per gross	-	-	-	-	-	0	6
Butter or lard per cwt.	-	-	-	-	-	0	3
Carriages four wheels each	-	-	-	-	-	5	0
Ditto two wheels each	-	-	-	-	-	2	6
Cement or plaster of Paris per ton	-	-	-	-	-	0	4
Chaff per ton	-	-	-	-	-	0	8
Chimney pots per dozen	-	-	-	-	-	0	3
China per ton	-	-	-	-	-	1	4
Coals per ton	-	-	-	-	-	0	6
Corn—wheat malt and all other kinds per quarter	-	-	-	-	-	0	4
Deals per ton	-	-	-	-	-	0	3
Drain pipes per ton	-	-	-	-	-	0	6
Drapery goods per cwt.	-	-	-	-	-	0	2
Earthenware per cwt.	-	-	-	-	-	0	2
Ditto common loose per ton	-	-	-	-	-	1	0
Fish salted or fresh per cwt.	-	-	-	-	-	0	3
Flour per sack of 4 bushels	-	-	-	-	-	0	2
Fruit per bushel	-	-	-	-	-	0	4
Furniture per ton	-	-	-	-	-	4	0
Glass mirrors windows or unenumerated per cwt.	-	-	-	-	-	0	1
Glazed bricks per 1,000	-	-	-	-	-	1	0
Grocery goods all kinds per ton	-	-	-	-	-	1	4
Gunpowder per cwt.	-	-	-	-	-	0	3
Hay and straw per ton	-	-	-	-	-	0	8
Hides or leather per ton	-	-	-	-	-	2	0
Hops per cwt.	-	-	-	-	-	0	2
Household goods per ton	-	-	-	-	-	4	0
Hurdles wood per dozen	-	-	-	-	-	0	2
Ditto iron per ton	-	-	-	-	-	1	4
Iron lead copper or other metals per ton	-	-	-	-	-	1	4
Iron manufactured not enumerated per ton	-	-	-	-	-	1	4
Lemons or oranges per cwt.	-	-	-	-	-	0	2
Lime per ton	-	-	-	-	-	1	0
Manures artificial per ton	-	-	-	-	-	0	6
Ditto street per ton	-	-	-	-	-	0	2
Margarine per cwt.	-	-	-	-	-	0	1
Marine stores (new) per ton	-	-	-	-	-	1	4
Marine stores (old) per ton	-	-	-	-	-	0	8
Meal bran or pollard per ton	-	-	-	-	-	0	4
Meat of all kinds per ton	-	-	-	-	-	1	4

	s.	d.	A.D. 1916.
Mineral waters per ton - - - - -	-	1 0	<i>Ryde.</i>
Molasses per cwt. - - - - -	-	0 1	
Moss litter per ton - - - - -	-	0 8	
Nails per ton - - - - -	-	1 4	
Oil cakes per ton - - - - -	-	0 8	
Oil petroleum per 40 gallons - - - - -	-	0 2	
Other kinds per ton - - - - -	-	0 8	
Paint per cwt. - - - - -	-	0 1	
Pavers per 1,000 - - - - -	-	1 0	
Pianofortes harmoniums and organs per ton - - - - -	-	5 0	
Pipe clay per ton - - - - -	-	1 0	
Pipes drain per 1,000 - - - - -	-	0 6	
Potatoes per ton - - - - -	-	0 6	
Poultry and game per doz. - - - - -	-	0 4	
Salt per ton - - - - -	-	0 10	
Ditto agricultural per ton - - - - -	-	0 6	
Sand chalk shingle or gravel per ton - - - - -	-	0 2	
Seeds agricultural per ton - - - - -	-	1 4	
Ditto per cwt. - - - - -	-	0 1	
Slates per ton - - - - -	-	0 6	
Soda per ton - - - - -	-	0 8	
Spars under 16 feet in length - - - - -	-	0 1	
Ditto over 16 feet in length - - - - -	-	0 2	
Stones rough and paving per ton - - - - -	-	0 4	
Stones grinding or millstones per ton - - - - -	-	0 8	
Ditto grave or marble per ton - - - - -	-	1 4	
Tar or pitch per cwt. - - - - -	-	0 1	
Tea per cwt. - - - - -	-	0 3	
Tiles roofing per 1,000 - - - - -	-	0 8	
Ditto paving or ornamental per 1,000 - - - - -	-	1 4	
Timber per 50 cubic feet - - - - -	-	0 6	
Tobacco per cwt. - - - - -	-	0 6	
Tobacco pipes per cwt. - - - - -	-	0 2	
Trees bundles under 112 lbs. - - - - -	-	0 2	
Ditto above 112 lbs. - - - - -	-	0 4	
Turf per ton - - - - -	-	0 4	
Vegetables per ton - - - - -	-	0 6	
Wine or spirits per 63 gallons - - - - -	-	0 8	
Ditto bottled per ton - - - - -	-	2 0	
Wool or yarn per ton - - - - -	-	1 4	
All other commodities not enumerated above per cwt. - - - - -	-	0 1	

A.D. 1916.
Ryde.

The Corporation may demand for goods remaining on the pier or quay for a longer time than 48 hours threepence per ton each day during which the goods shall remain after the first 48 hours.

RATE FOR SUPPLYING WATER.

	s. d.
For every 25 gallons or part of 25 gallons of pure and whole-	
some drinking water supplied to any vessel - - -	0 1½

WICKLOW HARBOUR.

Wicklow. Order for the transfer to the Wicklow Urban District Council of certain Harbour Works constructed by the Wicklow Harbour Commissioners in Wicklow Bay and of the powers of the said Commissioners to maintain alter improve and extend such works and for other purposes.

Preliminary.

Short and
collective
titles.

1. This Order may be cited as the Wicklow Harbour Order 1916 and the Wicklow Harbour Acts and Orders 1842 to 1907 and this Order may be cited together as the Wicklow Harbour Acts and Orders 1842 to 1916.

Commence-
ment of
Order.

2. This Order shall come into operation upon the day when the Act confirming this Order is passed and that day is in this Order referred to as "the commencement of this Order."

Interpreta-
tion.

3. In this Order unless the context otherwise requires—

"The Council" means the Wicklow Urban District Council;

"The district" means the urban district of Wicklow;

"The clerk" means the clerk of the Council;

"The Commissioners" means the Wicklow Harbour Commissioners;

"The Order of 1907" means the Wicklow Harbour Order 1907;

"The works of 1907" means the works constructed by the Commissioners under the Order of 1907 except Work No. 1 authorised by that Order;

"The district fund" and "the district rate" mean respectively the district fund and the rate authorised to be raised by the

Confirmation Act, 1916.

Council under the powers of the Towns Improvement (Ireland) Act 1854 and the Public Health (Ireland) Act 1878 as extended by any other Act ;

A.D. 1916.

Wicklow.

“The Local Government Board” means the Local Government Board for Ireland.

Words and expressions to which meanings are assigned by the Public Health (Ireland) Act 1878 and by the Local Government (Ireland) Act 1898 have in this Order the same respective meanings.

Undertakers.

4. The Council shall be the Undertakers for carrying this Order into execution. Undertakers.

Acquisition of Lands.

5. The Lands Clauses Acts (except so much thereof as relates to the purchase and taking of lands otherwise than by agreement and to the entry upon lands by the promoters of the undertaking) are hereby incorporated with this Order and for the purposes of that incorporation the term “special Act” in those Acts shall mean this Order.

Incorporation of Lands Clauses Acts.

6. The Council may purchase by agreement and hold for extraordinary purposes connected with the purposes of this Order any lands not exceeding in the whole three acres but nothing in this section shall exempt the Council from any proceedings for nuisance caused or permitted by them on land acquired by them under the powers conferred by this section.

Land for extra-ordinary purposes.

7. Persons empowered by the Lands Clauses Acts to sell and convey or release lands may if they think fit subject to the provisions of those Acts and this Order grant any easement right or privilege (not being an easement right or privilege of water in which other persons than the grantors have an interest) required for the purposes of this Order in over or affecting any such lands and the provisions of the said Acts with respect to lands and rentcharges so far as the same are applicable in this behalf shall extend and apply to such grants and to such easements rights and privileges as aforesaid respectively.

Power to take easements &c. by agreement.

8. Notwithstanding anything in the Lands Clauses Acts or in any other Act or Acts to the contrary the Council may retain hold and use for such time as they may think fit or may sell let lease exchange or otherwise dispose of in such manner and for such consideration and purpose and on such terms and conditions as they may think fit and in case of sale either in consideration of the execution of works or of the payment of a gross sum or of an annual rent or of any payment in any other form any lands and premises or any interest therein vested in them or acquired by them under this Order and may sell exchange

Power to retain and sell lands.

A.D. 1916. or dispose of any rents reserved on the sale exchange lease or other
 Wicklow. disposition of such lands and premises and may make do and execute
 any deed act or thing proper for effectuating any such sale lease
 exchange or other disposition and on any exchange may give or take
 any money for equality of exchange.

Transfer of Works of 1907 to the Council &c.

Transfer of
works of
1907 to
Council.

9.—(1) From and immediately after the commencement of this Order the works of 1907 and all the powers duties and obligations at the commencement of this Order vested in or belonging to the Commissioners in relation to the maintenance user and enjoyment and the alteration improvement and extension of the works of 1907 shall be transferred to and vested in the Council and the said works shall be held used and enjoyed and maintained altered improved and extended by the Council subject to the provisions of this Order and the Council shall exercise and discharge such powers duties and obligations as aforesaid in lieu of the Commissioners.

(2) For the purpose of completing the title of the Council to the works of 1907 hereby transferred to them this Order shall be deemed to be a conveyance by the Commissioners to the Council.

(3) Nothing in this Order contained shall alter or affect the limits within which the Commissioners are authorised to demand recover and receive rates and dues or within which the powers of the harbour master may be exercised.

Limits.

10. The limits within which the Council shall exercise and discharge their powers duties and obligations under this Order shall comprise that part of the Bay of Wicklow below high-water mark which is shown within the thick black lines marked on the map or plan certified by the Board of Trade and signed in quadruplicate by an assistant secretary of the Board of Trade of which one copy having been deposited at the Board of Trade another copy shall be deposited at the office of the Clerk of the Peace for the county of Wicklow a third copy shall be deposited at the office of the Council and the fourth copy shall be deposited at the office of the Commissioners and those limits are in this Order termed "the limits of this Order."

Power to
construct sea
defence
works when
necessary.

11. The Council may within the limits of this Order from time to time construct with the consent in writing of the Board of Trade such additional groynes embankments and other sea defence works as may be necessary and may maintain the same and with the consent of the Board of Trade may reconstruct alter improve and extend any such works.

Finance.

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Wicklow.

12. The Council may accept and apply towards the purposes of this Order any moneys which may be granted or contributed to them for those purposes or any of them.

Power to accept grants of money.

13.—(1) The Council may independently of any moneys which they have already borrowed or which they may be authorised to borrow under the provisions of any other Act or Order borrow at interest for the following purposes any sums not exceeding the following sums (that is to say):—

Power to borrow.

(A) For paying the costs charges and expenses of this Order as herein-after provided the sum requisite for that purpose :

(B) With the consent of the Local Government Board such further money as the Council may require for reconstructing altering improving or extending the works of 1907 for constructing reconstructing altering improving or extending any works referred to in the section of this Order the marginal note of which is "Power to construct sea defence works when necessary" and for any other purposes of this Order.

(2) In order to secure the repayment of moneys borrowed for the purposes mentioned in this section and the payment of interest thereon the Council may mortgage or charge the district fund and district rate or either of them Provided that no higher rate of interest than five per centum per annum shall be paid by the Council without the consent of the Local Government Board in respect of any moneys borrowed by the Council under the provisions of this Order and secured as aforesaid.

14. The Council shall not during the continuance of the present war and within twelve months thereafter raise or borrow any money (other than money required for paying the costs charges and expenses of this Order) unless the consent of the Treasury has been previously obtained.

Council no to borrow during continuance of war.

15. The Council shall out of the district fund and district rate or one or other of them and notwithstanding any limits placed by any Act upon the amount of such rate which limits are hereby removed for the purposes of this section pay off all money borrowed by them under this Order within the respective periods (each of which is in this Order referred to as "the prescribed period") following (that is to say):—

Period for repayment of borrowed moneys.

As to moneys borrowed for the purpose (A) mentioned in the section of this Order the marginal note of which is "Power to borrow" within five years from the commencement of this Order ;

As to money borrowed for the purpose (B) mentioned in the same section within such period as the Local Government Board may in each case prescribe.

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Wicklow.
Certain regulations of Public Health (Ireland) Act 1878 not to apply.

Application of moneys borrowed.

Proceeds of sale of surplus lands to be treated as capital.

Provisions as to mortgages.

Protection of lenders from inquiry.

Council not to regard trusts.

Mode of payment off of money borrowed.

16. The powers of borrowing money conferred on the Council by this Order shall not be restricted by any of the provisions of the Public Health (Ireland) Act 1878 and in calculating the amount which the Council may borrow under that Act any sums which they may borrow under this Order shall not be reckoned.

17. Any money borrowed under the provisions of this Order shall be applied only to the purposes for which it is authorised to be borrowed and to which capital is properly applicable.

18. The proceeds of sale of any surplus lands of the Council under the powers of this Order and all other moneys received on capital account not being borrowed moneys shall be distinguished as capital in the accounts of the Council and shall be applied in discharge of moneys borrowed by the Council under this Order. Provided that such proceeds when used to pay off borrowed moneys shall not be applicable to the payment of instalments or to payments into the sinking fund except to such extent and upon such terms as may be approved by the Local Government Board.

19. The following sections of the Public Health (Ireland) Act 1878 shall extend and apply mutatis mutandis to mortgages granted under this Order (that is to say):—

Section 240 (Form of mortgage);

Section 241 (Register of mortgages);

Section 242 (Transfer of mortgages);

Section 243 (Receiver may be appointed in certain cases).

20. A person lending money to the Council under this Order shall not be bound to inquire as to the observance by the Council of any provisions of this Order nor be bound to see to the application nor be answerable for any loss mis-application or non-application of the money lent or of any part thereof.

21. The Council shall not be bound to see to the execution of any trust whether express implied or constructive to which any loan or security for loan given by them may be subject but the receipt of the person in whose name any loan or security for loan stands in the register of mortgages of the Council shall be a sufficient discharge to the Council in respect thereof notwithstanding any trusts to which such loan or security may be subject and whether or not the Council have had express or implied notice of any such trust or of any charge or encumbrance upon or transfer of such loan or security or any part thereof or interest thereon not entered in their register.

22. The Council shall pay off all moneys borrowed by them on mortgage under the powers of this Order out of the district fund and district rate or one or other of them either by equal yearly or half-

yearly instalments of principal or of principal and interest combined or by means of a sinking fund as in this Order provided or partly by one of those methods and partly by another or others of them and the payment of the first instalment shall be made within one year or when the money is repayable by half-yearly instalments within six months from the date of borrowing the sum in respect of which it is made and the first payment to the sinking fund shall be made within one year from the date of borrowing the sum in respect of which it is made.

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Wicklow.

23.—(1) If the Council determine to repay by means of a sinking fund any moneys borrowed by virtue of this Order such fund shall be formed and maintained either—

Sinking fund.

(A) By payment out of the district fund and district rate or one or other of them to the sinking fund throughout the prescribed period of such equal annual sums as will together amount to the moneys for the repayment of which the sinking fund is formed. A sinking fund so formed is hereinafter called a “non-accumulating sinking fund”; or

(B) By payment out of the district fund and district rate or one or other of them to the sinking fund throughout the prescribed period of such equal annual sums as with accumulations at a rate not exceeding three pounds per centum per annum will be sufficient to pay off within the prescribed period the moneys for the repayment of which such sinking fund is formed. A sinking fund so formed is hereinafter called “an accumulating sinking fund.”

(2) Every sum paid to a sinking fund and in the case of an accumulating sinking fund the interest on the investments of the sinking fund shall unless applied in repayment of the loan in respect of which the sinking fund is formed be immediately invested in securities in which trustees in Ireland are by law for the time being authorised to invest trust moneys or in any mortgage bond debenture or stock of any county council or municipal corporation or other local authority as defined by section 34 of the Local Loans Act 1875 or of any urban district council in Ireland (exclusive of annuities rentcharges or securities transferable by delivery or any securities of the Council) and the Council shall be at liberty from time to time to vary and transpose such investments.

(3) In the case of a non-accumulating sinking fund the interest on the investments of the fund may be applied by the Council towards the equal annual payments to the fund.

(4) The Council may at any time apply the whole or any part of any sinking fund in or towards the discharge of the money for the repayment of which the fund is formed. Provided that in the case of

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an accumulating sinking fund the Council shall pay into the fund each year and accumulate during the residue of the prescribed period a sum equal to the interest which would have been produced by such sinking fund or the part thereof so applied if invested at the rate per centum per annum on which the annual payments to the sinking fund are based.

(5)—(a) If and so often as the income of an accumulating sinking fund is not equal to the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any deficiency shall be made good by the Council.

(b) If and so often as the income of an accumulating sinking fund is in excess of the income which would be derived from the amount invested if the same were invested at the rate per centum per annum on which the annual payments to the fund are based any such excess may be applied towards such annual payments.

(6) Any expenses connected with the formation maintenance investment application or management of or otherwise in relation to any sinking fund under this Order shall be paid by the Council in addition to the payments provided for by this Order.

(7) If it appears to the Council at any time that the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will not be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed it shall be the duty of the Council to make such increased payments to the sinking fund as will cause the sinking fund to be sufficient for that purpose. Provided that if it appears to the Local Government Board that any such increase is necessary the Council shall increase the payments to such extent as that Board may direct.

(8) If the Council desire to accelerate the repayment of any loan they may increase the amounts payable to any sinking fund.

(9) If the amount in the sinking fund with the future payments thereto in accordance with the provisions of this Order together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be more than sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may reduce the payments to the sinking fund either temporarily or permanently to such amounts as will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the money for the repayment of which the sinking fund is formed.

(10) If the amount in any sinking fund at any time together with (in the case of an accumulating sinking fund) the probable accumulations thereon will in the opinion of the Local Government Board be sufficient to repay within the prescribed period the moneys for the repayment of which the sinking fund is formed the Council may with the consent of that Board discontinue the annual payments to such sinking fund until that Board shall otherwise direct.

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(11) Any surplus of any sinking fund remaining after the discharge of the whole of the moneys for the repayment of which it was formed shall be applied to such purpose or purposes as the Council with the consent of the Local Government Board may determine.

24.--(1) The clerk shall within twenty-one days after the thirty-first day of March in each year if during the twelve months next preceding the said thirty-first day of March any sum is required to be paid as an instalment or annual payment or to be appropriated or to be paid to a sinking fund in pursuance of the provisions of this Order or in respect of any money raised thereunder and at any other time when the Local Government Board may require such a return to be made transmit to the Local Government Board a return in such form as may be prescribed by that Board and if required by that Board verified by statutory declaration of the clerk showing for the year next preceding the making of such return or for such other period as the Board may prescribe the amounts which have been paid as instalments or annual payments and the amounts which have been appropriated and the amounts which have been paid to or invested or applied for the purpose of the sinking fund and the description of the securities upon which any investment has been made and the purposes to which any portion of the sinking fund or investment or of the sums accumulated by way of compound interest has been applied during the same period and the total amount (if any) remaining invested at the end of the year and in the event of any default in making such return the clerk shall be liable to a penalty not exceeding forty shillings a day during the continuance of the default which shall be paid to the Local Government Board and shall be recoverable by that Board in the same manner as penalties recoverable under the Public Health (Ireland) Act 1878 in a summary manner may be recovered by parties aggrieved within the meaning of that Act.

Annual
return to
Local Go-
vernment
Board re-
specting
sinking
fund.

(2) If it appears to the Local Government Board by the return under this section or otherwise that the Council have failed to pay any instalment or annual payment required to be paid or to appropriate any sum required to be appropriated or to set apart any sum required for any sinking fund (whether such instalment or annual payment or sum is required by this Order or by the Local Govern-

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ment Board in virtue thereof to be paid appropriated or set apart) or have applied any portion of any sinking fund to any purposes other than those authorised the Local Government Board may by order direct that the sum in such order mentioned not exceeding double the amount in respect of which default has been made shall be paid or applied as in such order mentioned and any such order shall be enforceable by writ of Mandamus to be obtained by the Local Government Board out of the High Court.

Power to
re-borrow.

25.—(1) The Council shall have power—

- (a) To borrow for the purpose of paying off any moneys previously borrowed under this Order which are intended to be forthwith repaid ; or
- (b) To borrow in order to replace moneys which during the previous twelve months have been temporarily applied from other funds of the Council in repaying moneys previously borrowed under this Order and which at the time of such repayment it was intended to replace by borrowed moneys.

(2) Any moneys borrowed under this section shall for the purposes of repayment be deemed to form part of the original loan and shall be repaid within that portion of the period prescribed for the repayment of that loan which remains unexpired and the provisions which are for the time being applicable to the original loan shall apply to the moneys borrowed under this section.

(3) The Council shall not have power to borrow for the purpose of making any payment to a sinking fund or of paying any instalment or making any annual payment which has or may become due in respect of borrowed moneys.

(4) The Council shall not have power to borrow in order to replace any moneys previously borrowed which have been repaid—

- (a) By instalments or annual payments ; or
- (b) By means of a sinking fund ; or
- (c) Out of moneys derived from the sale of land ; or
- (d) Out of any capital moneys properly applicable to the purpose of the repayment other than moneys borrowed for that purpose.

Expenses
of main-
tenance &c.
of works.

26.—(1) The Council may defray the costs of maintaining repairing reconstructing altering improving or extending the works of 1907 and of constructing reconstructing maintaining altering improving or extending any works authorised or constructed under the powers of this Order out of the district fund and district rate or one or other of them notwithstanding any limits placed by any Act upon the amount

of such rate which limits are hereby removed for the purposes of this section Provided always that the amount of such costs shall not in any one year exceed an amount equal to that which would be produced by a rate of fourpence in the pound on the property assessed or liable to be assessed for the purposes of the district rate unless with the previous consent of the Local Government Board.

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(2) The Council may defray the costs of reconstructing altering improving or extending the works of 1907 and of constructing reconstructing altering improving or extending any works authorised or constructed under the powers of this Order out of moneys borrowed under this Order.

27.—(1) The Local Government Board may direct any inquiries to be held by their inspectors which they may deem necessary in regard to the exercise of any powers conferred upon them or the giving of any consents under this Order and the inspectors of the Local Government Board shall for the purposes of any such inquiry have all such powers as they have for the purposes of inquiries directed by that Board under the Public Health (Ireland) Act 1878.

Inquiries
by Local
Government
Board.

(2) The Council shall pay to the Local Government Board any expenses incurred by that Board in relation to any inquiries referred to in this section including the expense of any witnesses summoned by the inspector holding the inquiry and a sum to be fixed by that Board not exceeding three guineas a day for the services of such inspector.

Miscellaneous.

28. The Harbour Docks and Piers Clauses Act 1847 shall not be incorporated with this Order.

Exclusion of
Harbours &c.
Clauses Act.

29. The works of 1907 shall be deemed to be for all purposes within the urban district and county of Wicklow.

Works of 1907 to
be in urban dis-
trict and county
of Wicklow.

30. Nothing in this Order affects prejudicially any estate right power privilege or exemption of the Crown and in particular nothing herein contained authorises the Council to take use or in any manner interfere with any portion of the shore or bed of the sea or of any river channel creek bay or estuary or any lands hereditaments subjects or rights of whatsoever description belonging to His Majesty in right of His Crown and under the management of the Commissioners of Woods or of the Board of Trade respectively without the consent in writing of the Commissioners of Woods or the Board of Trade as the case may be on behalf of His Majesty first had and obtained for that purpose (which consent the said Commissioners and Board are hereby respectively authorised to give).

Saving rights
of Crown.

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Wicklow.
Costs of
Order.

31. All costs charges and expenses of and incident to the preparing and obtaining of this Order and otherwise incurred in reference thereto shall after taxation by the taxing officer of the House of Lords or of the House of Commons be paid by the Council out of the district fund and district rate or one or other of them or out of moneys to be borrowed for the purposes of the promotion of this Order by the Council under this Order.

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